

CYPRUS REPUBLIC

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION

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COMMISSIONER

File No.: 11.17.001.011.073

DECISION

Complaint regarding the non-fulfillment of the right of access to a recorded call

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of individuals with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I have examined a complaint submitted to my Office by Mr. XXX (hereinafter referred to as the "Complainant") against the Health Insurance Organization (hereinafter referred to as the "Respondent"), regarding the non-fulfillment of the right of access to a recorded call.

Based on the investigation I conducted, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A. Case Facts

Positions of the Complainant

2. In an electronic message dated April 24, 2023, which the Complainant sent to my Office, as well as to the Respondent (at the email address beneficiaries@gesy.org.cy) and to the Commissioner of Administration and Human Rights, it was stated that:

2.1. The Complainant, regarding his registration in the General Health System (GESY), wishes to deregister as a beneficiary under the S1 Document Holder category and to register as an EU Worker, as he is working in Cyprus as a citizen of the European Union,

2.2. This process was indicated to him by an employee of the GESY call center, whom he asked about the reason for the delay in his registration application,

2.3. On April 24, 2023, at 13:15, the Complainant contacted the GESY call center. During this communication, the Complainant requested from the employee he was speaking with to provide him with the recorded call, so that he would have proof, since until that day he had not been given any proof of the submission of his request, which was submitted in the first week of April 2023. The said employee refused to provide him with the recorded call, stating that "the relevant capability is not provided."

3. Since the sending of the said electronic message to my Office occurred before the deadline set by the Regulation regarding the fulfillment of the rights of data subjects, my Office requested, on July 27, 2023, from the Complainant to inform my Office accordingly if he had not been provided with the recorded call.

4. On December 4, 2023, the Complainant informed my Office that, up to that date, he had not been provided with the recorded conversation, submitting a completed complaint form of my Office.

Positions of the Respondent

5. In the context of investigating the complaint, my Office sent a letter to the Respondent dated February 7, 2024. On February 27, 2024, the Respondent informed my Office, among other things, of the following:

5.1. The Complainant sent an electronic message to the Beneficiaries Department of the Respondent, dated April 24, 2023, requesting that his application be deleted so that he could re-register in the category of "EU Worker." It is noted that the electronic message is the message that the Complainant sent to my Office,

5.2. The Respondent replied to the said message - complaint of the Complainant, on May 15, 2023, informing him that his application would be deleted within the day and that he could submit a new registration request. It is noted that the Respondent submitted this response to my Office,

5.3. The call center records all calls it handles, which are made through the phone numbers 17000 and 22017000,

5.4. The recorded calls are retained for a period of three months,

5.5. Data subjects can submit requests for the rights provided by the Regulation by sending an electronic message to the data protection officer of the Respondent (email address dpo@hio.org.cy), as stated in the Personal Data Protection Policy posted on the Beneficiaries and Providers Portals,

5.6. In the case of a request for the disclosure of a recorded call, at the call center via telephone, the data subject is informed by the service operator that the request must be sent in writing to the call center via email or through the Beneficiaries / Providers Portal. Subsequently, the request is forwarded to the Respondent for handling and in the case...

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If the Subject evaluates the request positively, then they may request the service center to disclose the recorded call to the subject,

5.7. After communication between the Subject and the service center, assurances were received that the service operators always follow the procedure that informs the subject about the correct way to submit the request. However, due to the significant time that had passed since the Complainant's call and the large number of calls, the operators could not provide further details,

5.8. The aforementioned call of the Complainant was recorded, but it is no longer available because a significant amount of time has passed since it took place,

5.9. Following an investigation in the information system, no written request from the Complainant regarding the disclosure of the recorded call was found. As stated, "therefore, since the subject did not submit their request in the appropriate manner, it was not examined."

6. Evaluating the responses I received, my Office sent a letter to the Subject on June 4, 2024. On June 28, 2024, the Subject informed my Office, among other things, of the following:

6.1. The Subject focuses on the patient and facilitating their access to healthcare services within the framework of the General Health System (GeSY). After the Complainant had informed that they were facing a health issue and required immediate medical care, the Subject promptly proceeded to manage their request for deletion and re-registration in GeSY under a different category of beneficiary, so that the Complainant could receive the necessary healthcare services immediately,

6.2. Given the satisfaction of the Complainant's registration request in another category of beneficiary, the Subject considered their request for the audio recording of the call to the call center as moot, since, as they themselves stated, they were requesting the recording for the purpose of proving the submission of their request for deletion and re-registration in another category of beneficiary. Therefore, the Subject promptly proceeded with the management of their registration request in GeSY, considering that this was the substantive issue of communication with the Beneficiary Department of the Subject,

6.3. The Subject did not conduct a review of the relevant recorded call, as it was no longer available.

7. For further investigation of the complaint, my Office sent a letter to the Subject, dated July 17, 2024, to which they responded on August 8, 2024, with the following:

7.1. As explained in the Subject's letter dated June 28, 2024, the Subject, after receiving the Complainant's email, promptly proceeded to handle their request for deletion and re-registration in another category of beneficiary, in order to receive the necessary medical care. Therefore, the Subject did not conduct a review of the relevant recorded call while it was available,

7.2. As mentioned in the Subject's letter dated February 27, 2024, the Subject contacted the service center and received assurances that the

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Service operators always follow the procedure, which provides for the notification of data subjects regarding the correct way to submit a request for access. Furthermore, the Respondent, requesting to be informed about the details of the incident, was informed that due to the time that had elapsed since the Complainant's call and due to the large number of calls received daily, it was not possible to provide further details,

7.3. The Respondent, taking into account his obligation to ensure the rights of data subjects, as derived from the Regulation, has made recommendations to the service center regarding the handling of requests for the provision of a copy of a recorded call.

Positions of the Complainant

8. On September 12, 2024, my Office sent to the Complainant the actions taken up to that point, as well as the positions submitted to my Office by the Respondent. Additionally, the Complainant was requested to submit his positions regarding the claims of the Respondent by September 27, 2024. On the same day, namely September 12, 2024, the Complainant responded to my Office's letter, specifically stating, "Thank you very much for the update."

9. Considering that the Complainant had not submitted any position to my Office regarding the claims of the Respondent, my Office sent another letter to the Complainant, dated October 17, 2024, requesting him to submit his positions, if he wishes, by November 5, 2024. However, neither this time did the Complainant submit his positions.

B. Legal Framework

10. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

11. In the same article of the Regulation, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

12. Regarding the time frame for fulfilling the rights of data subjects, Article 12 of the Regulation provides that:

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«3.

The data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without delay and in any case within one month of receiving the request. This deadline may be extended by a further two months if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of this extension within one month of receiving the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information shall be provided, where possible, by electronic means, unless the data subject requests otherwise.»

13.

Regarding the right of access, Article 15 of the Regulation provides the following:

«1.

The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information:

- a)
the purposes of the processing,
- b)
the relevant categories of personal data,
- c)
the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations,
- d)
if possible, the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period,
- e)
the existence of the right to request from the data controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject or the right to object to such processing,
- f)
the right to lodge a complaint with a supervisory authority,
- g)
when the personal data are not collected from the data subject, any available information as to their source,
- h)
the existence of automated decision-making, including profiling, referred to in Article 22 paragraphs 1 and 4 and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2.
When personal data are transferred to a third country or to an international organization, the data subject has the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3.
The data controller shall provide a copy of the personal data undergoing processing. For any additional copies requested by the data subject, the data controller may charge a reasonable fee for administrative costs. If the data subject...»

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The data subject submits the request electronically, and unless the data subject requests otherwise, the information is provided in a commonly used electronic format.

4.
The right to receive a copy referred to in paragraph 3 does not adversely affect the rights and freedoms of others.

14.
Pursuant to Article 57, paragraph 1 of the Regulation, the Commissioner for Personal Data Protection has, among other duties, the responsibility to:

“(st)
handle complaints submitted by the data subject or by a body, organization, or association in accordance with Article 80 and investigate, to the extent appropriate, the subject of the complaint and inform the complainant about the progress and outcome of the investigation within a reasonable timeframe, particularly if further investigation or coordination with another supervisory authority is required.”

15.
Pursuant to Article 58, paragraph 2 of the Regulation, the Commissioner for Personal Data Protection has the following corrective powers:

“(a)

to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this Regulation,

(b)

to issue reprimands to the controller or the processor when processing operations have infringed provisions of this Regulation,

(c)

to order the controller or the processor to comply with the requests of the data subject for the exercise of their rights under this Regulation,

(d)

to order the controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified timeframe,

(e)

to order the controller to notify the data subject of a personal data breach,

(f)

to impose a temporary or definitive limitation, including a ban on processing,

(g)

to order the rectification or erasure of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to order notification of such actions to recipients to whom the personal data have been disclosed pursuant to Article 17, paragraph 2 and Article 19,

(h)

to withdraw a certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue a certification, provided that the certification requirements are not met or are no longer met,

(i)

to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

(j)

to order the suspension of the transfer of data to a recipient in a third country or to an international organization.”

16.

Regarding the general terms for the imposition of administrative fines, Article 83, paragraph 2 of the Regulation provides the following:

“2.

Administrative fines, depending on the circumstances of each individual case, shall be imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points (a) to (h) and in Article 58, paragraph 2, point (i). When deciding on the imposition of an administrative fine, as well as on the amount of the administrative fine for each individual case, the following shall be duly taken into account:

(a)

the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the level of damage suffered,

(b)

the intent or negligence that led to the infringement,

(c)

any actions taken by the controller or the processor to mitigate the damage suffered by data subjects,

(d)

the degree of responsibility of the controller or the processor, taking into account the technical and organizational measures implemented pursuant to Articles 25 and 32,

(e)

any relevant previous infringements by the controller or the processor,

(f)

the degree of cooperation with the supervisory authority to remedy the infringement and mitigate its possible adverse effects,

(g)

the categories of personal data affected by the infringement,

(h)

the manner in which the supervisory authority became aware of the infringement, in particular whether and to what extent the controller or the processor notified the infringement,

(i)

where measures referred to in Article 58, paragraph 2 were previously ordered against the involved controller or processor regarding the same subject matter, the compliance with those measures,

(j)

the adherence to approved codes of conduct in accordance with Article 40 or approved certification mechanisms in accordance with Article 42, and

(k)

any other aggravating or mitigating factor arising from the circumstances of the particular case, such as the financial benefits gained or losses avoided, directly or indirectly, from the infringement.

3.

Where the controller or the processor, for the same or related processing operations, infringes several provisions of this Regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious infringement.

4.

Infringements of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of undertakings, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

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α) the obligations of the data controller and the processor in accordance with Articles 8, 11, 25 to 39, and 42 and 43,

β) the obligations of the certification body in accordance with Articles 42 and 43,

γ) the obligations of the monitoring body in accordance with Article 41 paragraph 4.

5.

Violations of the following provisions incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total global annual turnover of the previous financial year, whichever is higher:

α) the basic principles for processing, including the conditions applicable to consent, in accordance with Articles 5, 6, 7, and 9,

β) the rights of data subjects in accordance with Articles 12 to 22,

γ) the transfer of personal data to a recipient in a third country or to an international organization in accordance with Articles 44 to 49,

δ) any obligations under the law of the Member State established pursuant to Chapter IX,

ε) non-compliance with an order or with a temporary or definitive restriction on processing or with a suspension of data flows imposed by the supervisory authority pursuant to Article 58 paragraph 2 or failure to provide access in violation of Article 58 paragraph 1.

17.

Regarding the imposition of an administrative fine, Article 32 of the Law on the Protection of Natural Persons Against the Processing of Personal Data and the Free Movement of Such Data of 2018, Law 125(I)/2018, provides that:

“(1) Subject to the provisions of Article 83 of the Regulation, the Commissioner imposes an administrative fine.

(...)

(3) An administrative fine imposed on a public authority or public body concerning non-profit activities shall not exceed two hundred thousand euros (€200,000).”

Γ.

Reasoning

18.

According to Article 15 of the Regulation, the data subject has the right to access their personal data. It is understood that the provision of data to the data subject occurs provided that such data exist and have not already been deleted.

19.

In this case, the data controller is the entity against whom the complaint is made, since the operation of the call center is conducted for purposes determined by the entity itself.

20.

The communication of the Complainant with the call center took place on April 24, 2023. Considering that on the same day the Complainant sent a message to the entity against whom the complaint is made, requesting the recorded call, and since according to the position of the entity the recorded calls are retained for a period of three months, it follows that the recorded call was available when the Complainant sent their message.

21.

In the electronic message of the Complainant, dated April 24, 2023, it was requested to unsubscribe from a specific category of beneficiary in order to register in another category of beneficiary. Furthermore, as stated by the Complainant, they requested the recorded call in order to have proof, since they were not provided with relevant proof of submission of their request to the Citizen Service Center, which was submitted in the first week of April 2023.

22.

Regarding the Complainant's request for the possibility of changing categories, this was implemented, as stated by the entity, immediately. Specifically, the Complainant was informed on May 15, 2023, that their application for a change of beneficiary category would be deleted within the day and that they could submit a new registration request. My Office recognizes that this message was within one month from the Complainant's message, that is, it was within the deadline for satisfying the right of access, as provided in Article 12(3) of the Regulation.

23.

However, the possibility of changing the beneficiary category does not automatically mean that the Complainant's request for the recorded call is revoked. It cannot also be considered that the Complainant's access request is revoked because, as they stated, they requested the call as proof of their request. Moreover, in any case, the entity could have asked the Complainant whether they wished to receive the recorded call, despite the fact that the possibility of changing the beneficiary category was realized. However, the entity did not take this action. Therefore, the entity should not have considered the Complainant's request as moot, as the entity stated.

24.

In their electronic message, the Complainant noted that the employee of the call center with whom they communicated informed them that the possibility of receiving the recorded call is not provided. Even if the change of beneficiary category was made as the Complainant desired, the entity should have immediately investigated the report that the possibility of receiving the call is not provided, by reviewing the recorded call and informing the data protection officer of the entity accordingly. However, the entity, as stated, did not check the recorded call while it was available.

25.

Regarding the position of the entity that assurances were received that the service operators always

follow the procedure that provides for informing the subject about the correct way to submit the request, considering that the Complainant's call has not been checked, I conclude that it cannot be proven that the Complainant was properly informed.

26.

The Guidelines 01/2022 of the European Data Protection Board regarding the rights of data subjects – Right of access, as issued on March 28, 2023, provide that:

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"54. It should be noted that the data controller is not obliged to act upon a request sent to a random or incorrect electronic (or postal) address that has not been provided directly by the data controller, or through any communication channel that is clearly not intended to receive requests regarding the rights of the data subject if the data controller has provided an appropriate communication channel that can be used by the data subject.

55. Similarly, the data controller is not obliged to act upon a request sent to the electronic address of an employee of the data controller who may not be involved in processing requests concerning the rights of data subjects (e.g., drivers, cleaning staff, etc.). Such requests are not considered effective if the data controller has clearly provided the data subject with an appropriate communication channel. However, if the data subject sends a request to the employee of the data controller designated as the contact person (e.g., account manager at a bank or regular advisor at a mobile network operator), such contact details should not be considered random, and the data controller should make every reasonable effort to process the request so that it can be redirected to the contact point and responded to within the deadlines set by the GDPR."

27. As stated by the Respondent, since the Complainant did not submit their request in the appropriate manner, it was not examined. Nevertheless, the electronic message from the Complainant to the Respondent was sent to the electronic address beneficiaries@gesy.org.cy, that is, to a non-random or incorrect address, which pertains to issues of beneficiaries of the General Health System.

28. Therefore, considering that the Complainant sent their request to a non-random or incorrect address, which pertains to issues of beneficiaries, the Respondent should have redirected the access request to the contact point, namely the data protection officer of the Respondent, and responded within one month of receipt. Consequently, despite the fact that the Complainant did not send their request to the electronic address dpo@hio.org.cy, I find that their request was successfully exercised and, therefore, that it should have been fulfilled by the Respondent.

29. Based on the above, I find that the Respondent did not fulfill the access right exercised by the Complainant.

D. Conclusion

30. Taking into account all the above elements, as they have been presented, and based on the powers conferred upon me by Article 57(1)(f) of the Regulation, I find that there is a violation by the Respondent of Article 15(1) of Regulation (EU) 2016/679, because it did not fulfill the access right of the Complainant.

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31. Based on the provisions of Article 83 of the Regulation, regarding the conditions for imposing administrative fines, insofar as they apply to the specific case, in determining the administrative fine, I took into account the following mitigating factors (a) – (e):

(a) the satisfaction of the Complainant's request for the possibility of changing the category of beneficiary of the GHS,

(b) the notification of the Complainant regarding the possibility of changing the category of beneficiary of the GHS, within one month of receiving the Complainant's request,

(c) the incident concerned a single data subject,

- (d) there was no indication of intent from the Respondent,
- (e) the cooperation of the Respondent with my Office in the context of the investigation of the complaint.

32. After considering and weighing:

- (a) the applicable legislative framework regarding the prescribed administrative penalties in the provisions of Article 58(2) and Article 83 of the Regulation,
- (b) all the circumstances and factors presented by the Complainant and the Respondent based on all existing correspondence,
- (c) the aforementioned mitigating factors,

I find that, under the circumstances, the imposition of an administrative fine is not justified.

33. Nevertheless, taking into account the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(b) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions, to issue a reprimand to the Health Insurance Organization

for the violation of Article 15(1) of Regulation (EU) 2016/679.

Eirini Loizidou Nicolaidou
Commissioner for the Protection
of Personal Data
December 16, 2024"